



CHAPTER 3.

An Act to authorise the making of preparatory arrangements for the calling up of male persons who are about to become liable to be called up for service under the National Service Acts, 1939 to 1941, to simplify the making of proclamations for the purposes of those Acts, and to amend the provisions of those Acts relating to exemptions.
[17th December 1942.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows;—

1.—(1) The Minister may from time to time by public notice require male persons who have attained such age as may be specified in the notice (not being less than seventeen years and eight months), being persons who if they had attained the requisite age would have become liable under the principal Act to be called up for service in the armed forces of the Crown, to be registered for such service notwithstanding that they have not yet become liable to be so called up.

Power to enable preparatory action to be taken with respect to persons about to become liable to be called up.

(2) References in this section, and in the principal Acts as amended by this section, to persons subject to registration shall be construed as references to all persons, including persons who have been registered, who for the time being are liable under the principal Act to be called up for service or who, having been required to be registered by virtue of a notice under this section, would for the time being be liable to be so called up if they had attained the requisite age.

(3) The provisions of the principal Acts specified in the first column of the Schedule to this Act (which relate to the procedure to be followed before persons are called up for service and to

consequential matters) shall apply to all persons subject to registration and accordingly those provisions shall have effect subject to the amendments specified in the second column of that Schedule.

Power to make proclamations applicable to persons who subsequently attain specified age.

2. Any proclamation made after the commencement of this Act under section one of the principal Act, rendering persons who at the date of the proclamation have attained such age (not being less than eighteen years) as may be specified in the proclamation liable to be called up for service, may direct that any person who attains that age on any subsequent date shall on that date become liable to be called up for service as if the proclamation had been made on that date.

Amendments as to exemptions.

2 & 3 Geo. 6.
c. 62.

3.—(1) If arrangements are made on behalf of His Majesty with respect to any part of His Majesty's dominions outside Great Britain, or any British protectorate, any mandated territory, or any other country or territory being a country or territory under His Majesty's protection or suzerainty, for the purpose of excluding from exemption under paragraph (a) of subsection (1) of section eleven of the principal Act any class of persons so exempted as being nationals or citizens of that part or persons born or domiciled in that part, protectorate, country, or territory, then, notwithstanding anything in subsection (5) of section one of the Emergency Powers (Defence) Act, 1939, or in section one of the National Service (No. 2) Act, 1941, His Majesty may give effect to the arrangements by Defence Regulations made under the Emergency Powers (Defence) Acts 1939 and 1940.

In this subsection the expression "arrangements" means, in relation to any Dominion or to India or Burma, arrangements made with His Majesty's Government in that Dominion or with the Government of India or of Burma, as the case may be; and the expression "Dominion" has the same meaning as in the Emergency Powers (Defence) Act, 1939.

(2) A person being an officer holding an unpaid commission in the Royal Naval Volunteer Reserve (Sea Cadet Corps), an officer of the Territorial Army Reserve of Officers commissioned for service with the Army Cadet Force, or a commissioned officer of the Training Branch of the Royal Air Force Volunteer Reserve, shall not be exempt as being a member of any of His Majesty's forces from liability under the principal Acts to be called up for service.

Amendment of Act by Defence Regulations.
3 & 4 Geo. 6.
c. 20.

4. Paragraph (d) of subsection (2) and subsection (4) of section one of the Emergency Powers (Defence) Act, 1939, as amended by subsection (2) of section one of the Emergency Powers (Defence) Act, 1940, shall have effect as if this Act had been passed before the commencement of the last mentioned Act.

5.—(1) In this Act the expressions “the principal Act” and Interpretation, “the principal Acts” mean respectively the National Service short title and (Armed Forces) Act, 1939, as amended by or under any citation. enactment, and the National Service Acts, 1939 to 1941, as ^{2 & 3 Geo. 6.} so amended; and other expressions have the same meaning as in ^{c. 81.} the principal Acts.

(2) This Act may be cited as the National Service Act, 1942, and this Act and the principal Acts may be cited together as the National Service Acts, 1939 to 1942.

Section 1.

SCHEDULE.

AMENDMENTS OF NATIONAL SERVICE ACTS, 1939 TO 1941.

The National Service (Armed Forces) Act, 1939.

<i>Section.</i>	<i>Amendment.</i>
Section 2 ...	In subsection (1), subsection (2) and subsection (6) for the words "liable under this Act to be called up for service" there shall be substituted the words "subject to registration". In subsection (7) and subsection (9) for the words "is liable under this Act to be called up for service" there shall be substituted the words "remains subject to registration".
Section 3 ...	In subsection (1) and subsection (6) for the words "liable under this Act to be called up for service", and in subsection (1) for the words "liable to be called up for service", there shall be substituted the words "subject to registration".
Section 5 ...	In subsection (1) and subsection (7) for the words "liable under this Act to be called up for service" there shall be substituted the words "subject to registration". In subsection (6) after the word "liable", and in subsections (9) and (10) after the word "liable" where that word occurs for the second time in each of those subsections there shall be inserted the words "or prospectively liable". At the end of subsection (6) there shall be added the words "Provided that in relation to any person who, by reason of his age, has not yet become liable under this Act to be called up for service, any condition imposed under paragraph (b) of this subsection shall be suspended until he attains an age at which he would have become so liable".
Section 6 ...	In subsection (1) and subsection (5) for the words "liable under this Act to be called up for service" there shall be substituted the words "subject to registration"; and in subsection (1) for the word "thereunder" there shall be substituted the words "under this Act" and for the words "liability to be so called up" there shall be substituted the words "liability under this Act to be called up for service".
Section 14 ...	In subsection (4) after the words "by reason of their having" there shall be inserted the words "become subject to registration or having".

<i>Section.</i>	<i>Amendment.</i>
	<i>The National Service Act, 1941.</i>
Section 1	... In subsection (2) for the words "liable to be called up for civil defence" there shall be substituted the words "subject to registration". In subsection (3) for the words "persons for the time being liable under that Act to be called up for service, and to liability to be so called up" there shall be substituted the words "persons subject to registration, and to liability under that Act to be called up for service".
Section 6	... In subsection (1) after the word "liable" where that word occurs for the first time, and in subsection (3) after the word "liable" there shall be inserted the words "or prospectively liable".
Section 7	... In subsection (1) and subsection (2) after the word "liable", wherever that word occurs, there shall be inserted the words "or prospectively liable".